

determines whether a valid arbitration agreement exists. [Citation.] But if a valid agreement exists, and if the agreement delegates the arbitrability issue to an arbitrator, a court may not decide the arbitrability issue.”[.] )

A delegation to the arbitrator is enforceable so long as it is clear and unmistakable. (*Rent-A-Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, 70, fn. 1 (*Rent-A-Center*).)

A delegation clause is treated as a separate agreement to arbitrate. (*Malone v. Superior Court* (2014) 226 Cal.App.4th 1551, 1559-1559.) Thus, “when a party’s challenge is directed to the agreement as a whole—even if it applies equally to the delegation clause [such that if the defense is valid the entire agreement will be unenforceable]—the delegation clause is severed out and enforced; thus, the arbitrator, not the court, will determine whether the agreement is enforceable.” (*Id.* at pp. 1559-1560; *Rent-A-Center, supra*, 561 U.S. at p. 73.)

“ ‘There are two prerequisites for a delegation clause to be effective. First, the language of the clause must be clear and unmistakable. [Citation.] Second, the delegation must not be revocable under state contract defenses such as fraud, duress, or unconscionability.’ [Citations.] The ‘clear and unmistakable’ test reflects a ‘heightened standard of proof’ that reverses the typical presumption in favor of the arbitration of disputes.” (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 892; *see also, e.g., Malone v. Superior Court, supra*, 226 Cal.App.4th at p. 1560 [finding the delegation clause providing “[t]he arbitrator has exclusive authority to resolve any dispute relating to the interpretation, applicability, or enforceability of this binding arbitration agreement” to be clear and unmistakable]; *Momot v. Mastro* (9th Cir. 2011) 652 F.3d 982, 988 [finding language delegating issues of “the validity or application of any of the provisions of” the arbitration clause to be a clear and unmistakable agreement to arbitrate the question of arbitrability].)

Here, the Arbitration Agreement includes language clearly and unmistakably delegating to the arbitrator questions of arbitrability. The Arbitration Agreement explicitly provides the arbitrator “exclusive authority . . . to resolve . . . any dispute relating to . . . applicability, enforceability, . . . and any claim that all or any part of this agreement is unconscionable, void, or voidable.” (Arb. Agmt. ¶ 1.) The delegation clause is not revocable.

Therefore, the court must delegate arbitrability issues to the arbitrator, barring any specific challenge to the delegation provision itself. (*See Rent-A-Center, supra*, 561 U.S. at pp. 71-73 [holding a party’s challenge to the arbitration agreement as a whole does not invalidate the delegation clause; while courts may consider enforceability challenges specific to delegation clauses, the arbitrator is to consider challenges to the arbitration agreement as a whole];

accord, *Nickson v. Shemran, Inc.* (2023) 90 Cal.App.5th 121, 132.)

Defenses to Enforcement of the Delegation Clause

Plaintiff argues the delegation clause is unconscionable.

A court may refuse to enforce an arbitration agreement that is unconscionable. (Civ. Code § 1670.5.) “The general principles of unconscionability are well established. A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree and the contract contains terms that are unreasonably favorable to the other party.” (*OTO, LLC v. Kho* (2019) 8 Cal.5th 111, 125.)

Unconscionability has a procedural and a substantive element: the procedural element focuses on the existence of oppression or surprise and the substantive element focuses on overly harsh or one-sided results. (*Oto, LLC v. Kho, supra*, 8 Cal.App.5th at p. 125; *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.)

To be unenforceable, a contract must be both procedurally and substantively unconscionable, but the elements need not be present in the same degree. The analysis employs a sliding scale: “. . . the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Armendariz, supra*, 24 Cal.4th at 114; *Mercuro v. Superior Court* (2002) 96 Cal.App.4th 167, 174-175.)

Plaintiff contends the delegation clause is procedurally unconscionable because it is an adhesive contract. A contract of adhesion is “a standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.” (*Armendariz, supra*, 24 Cal.4th at p. 113.)

Here, Plaintiff submits evidence that she was not “offered the option” to rent without agreeing to the arbitration agreement and that she was not informed she could opt out or reject the provision. (See Eaton Decl. ¶¶ 5-6.) Nevertheless, at the time of execution, Plaintiff Eaton acknowledged she had the opportunity to review the provision in its entirety and seek the advice of counsel of her choosing regarding the Arbitration Agreement. (Arb. Agmt. ¶ 5.) Plaintiff submits no evidence disputing that fact. Therefore, Plaintiff does not establish the delegation clause to be procedurally unconscionable.

Even if the court *arguendo* found the delegation clause to be procedurally unconscionable, Plaintiff Eaton does not show the clause to be substantively unconscionable. Because delegation clauses are treated as separate agreements to